

Abdul Kalam v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 19 July 2019 · WRIT - C No. - 22651 of 2019 · **Writ dismissed; liberty to dispute the bill before the Executive Engineer under clause 6.5.**

HEADNOTE

A writ challenging a recovery citation for electricity dues, on the plea that the bill is incorrect and excessive, is not maintainable where the consumer has not applied to the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005. The petition is dismissed with liberty to raise the dispute before that officer.

FACTUAL SUMMARY

Abdul Kalam filed a writ petition against a recovery citation dated 28 January 2019 seeking Rs. 84,797.60 as electricity dues. He contended that the bill was incorrect and on the higher side, and that he had disputed it by a representation annexed to the petition. Counsel for the petitioner and for respondents 4 and 5 were heard. The Court recorded that no application disputing the bill had been moved before the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

Correctness of an electricity bill is to be questioned under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer. A writ petition against a recovery citation for such dues, where no application has been moved before that officer, is dismissed with liberty to raise the dispute there. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 Writ against a recovery citation for an alleged excessive electricity bill dismissed because the consumer had not applied to the Executive Engineer under clause 6.5. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILL OF RS. 84,797.60 IS INCORRECT OR EXCESSIVE

Left open for the Executive Engineer under clause 6.5. ¶ 1